ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	133rd Commission Meeting
DATE:	29 & 30 June and 03 July 2023
TIME:	09:30 AM
VENUE:	*Druk Dradhir Khang*

#	AGENDA & DISCUSSION	DECISIONS
1	**Update on content development workshop for FITI – ED** *The Education Division updated the Commission on the training content development for the Financial Institutes. The content emphasizes on the mandates of the ACC, corruption prevention tools, case scenarios which are prevalent in the Financial institutes and other activities aimed to complement understanding of the concepts. The content is tentatively planned to be delivered within three days. The training is expected to be rolled out by the mid-July.*	**The directives of the Commission are:** • **Confirm the number of participants for the training and accordingly pool resources from other Departments/Divisions (DoI, CMD, PD & LD);** • **Develop the engagement plan for the officials from other Departments/Divisions along with the action plan/strategy for session delivery and present to the Commission;** • **Given the large number of participants and to ensure maximum coverage of participants, explore the possibilities of conducting sessions simultaneously to different groups by different group of resource persons; and** • **ED to schedule the timing for the Commission's engagement during the sessions.**
2	**Present DoI's proposal in relation to the recommendations provided by the delegates from CPIB – DoI** *The Department of Investigation presented its proposal prepared against the 14 points recommendation provided by the reviewers from the CPIB, Singapore. The brief of the proposal vis-à-vis the recommendations of the reviewers is as given below:* *1. Change the position title for the staff under Department of Investigation from Integrity Promotion Officer to Investigation Officer and Integrity Promotion Assistant to Investigation*	**The decisions of the Commission vis-à-vis the proposal are as follows:** **1. Considering the rationality of maintaining the name to not make the position of the investigators conspicuous which otherwise would increase the chance of social stigmatization and intimidation, the Commission directed the Department to defer the idea of changing the position title;** **2. The case assignment order to be signed by Chairperson as practiced**

	Assistant towards bringing coherence between the position title and job responsibility; 2. *Delegate the responsibility of signing the case assignment order to the Director, Department of Investigation;* 3. *Towards building professional competency of the investigators, every staff under DoI in the Professional & Management Category and those IPAs who are adequately competent and have lead the case investigation will be assigned a case each to lead after completion of one year of service in the Department. However, when the particular case requires multiple interviews including search and seizure operations, the individual IO will receive support from other Officers of the Department. To this, the Department also felt the need to have an investigator oriented competency training to ensure uninhibited uptake of case investigations by the Officers.* 4. *To conduct self-defense training for the safety of the Officers in the Department of Investigation.* 5. *The reviewers recommended to pick up suspects and witnesses without summoning to the office and conduct searches when necessary to avoid loss of potential evidence. Noting the challenges, the Department proposed to continue with the current practice with enhanced due diligence;* 6. *Regarding the self-recording of statements on behalf of the witness and accused, taking note of the practical challenges, the Department proposed that the investigators will be allowed to write statement if the person is illiterate and not able to write his/her statement with the following conditions:* - *The statement written has to be read to the accused or witnesses preferably by the third person before attesting their signatures;* - *The process to be captured in the interview video recording system with*	**currently. In addition, the Officers should make sure that the case assignment orders are not necessarily produced to any office or individual who ask for it. In this line, the Department and Legal Division to explore how ACC's card can be optimally used in place of case assignment order if asked by any individual and office on the authority to investigate the case;** **3. Endorsed the proposal and directed to roll out the same from July 2023. In addition, the Department to explore how to account and take forward the concept of prosecution referral per person including sub-investigation papers.** **4. Package the self-defense training with the Mandatory training while also ensuring that the training is provided to both new recruits and existing staff. In addition, HRS to ensure that the budget approved for the mandatory training is also used for conducting other trainings such as intermediate and advanced as defined in the Competency Based Framework.** **5. Noted and endorsed with the exception to pick up as and when necessary;** **6. Noted;** **7. Noted;** **8. Noted. The Commission directed to strategize the identification of the responsible person within the Department to respond to the distress button such as involving Chief concerned after office hours;** **9. Department to look into the knowledge management currently being worked out by the Education Division (ED) and agree on the format. Further, for relating practical case scenarios during the advocacy programs, Department to**

	the electronic copy of the same preserved based on the priority. 7. *Proposed a need to explore a location within the Building to designate as **Ops Room** which will have basic facilities to start with.* 8. *Need to have adequate interrogation rooms and install distress button to respond during the emergencies with the responsible person clearly identified to respond especially when the interrogations protract beyond office hours.* 9. *Given that the investigation requires adequate knowledge on various businesses, the knowledge sharing mechanism has been recommended by the reviewers. The Department acknowledged the recommendation. In cognizance of such requirement, the Department in the past strived to come up with the handbook on thematic areas such as land, finance, procurement and engineering. However, as the Officers were fully engaged in the case related works, the initiative couldn't make headway.* 10. *Towards effective management of case statistics and track progress of the cases, a periodical reporting to the Commission is deemed important. Doing this will also help in addressing associated challenges thereby helping in effective closure of the cases.*	**provide necessary inputs to the Education Division; and** **10. DoI to think on the frequency and the format for reporting to the Commission on the work progress/statistics of cases. In addition, other Departments, Divisions and Regional Offices to optimally use the monthly management meeting to update on the performance and other associated issues as deemed appropriate.**
3	**Present case management system including the status of case since July 2022 – DoI** *The DoI presented the statistics on cases since July 2022.*	**The Commission noted the statistics update. Some of the specific directions are:** • **Prioritize the closure/clearance of backlog cases qualified for investigation in the FY 2023-2024;** • **The DoI & LD led by Commissioner Jamtsho to conduct mop-up operation for closing land related cases by collaborating with the NLCS;** • **Include what Department could achieve against the backdrop of limited human resource capacity and budget cuts in the Annual Report; and** • **DoI, CMD and LD to collaborate in revisiting the number of backlog cases.**

4	**Apprise on Country Visit for the Second Cycle Review – LD & PPD** *The LD & PPD apprised the Commission on the Country Visit for the Second Cycle Review of UNCAC implementation. More importantly, it was updated that the reviewers indicated on the limited initiatives of the ACC to enhance transparency and accountability unlike the initiatives taken to promote integrity measures.*	**The Commission directed LD to see what is lacking in our legal framework that is there in UNCAC to ensure aggressive uptake of accountability and transparency measures.**
5	**Present draft agenda for the 11th QSM – PPD** *The PPD presented the draft agenda along with the theme for the 11th QSM.*	**The Commission endorsed the agenda. Some of the specific directives were to:** • **Include 'Roll call of Honor', budget performance of the FY 2022-2023 as the agenda; and** • **PPD to expound on the theme.**
6	**Present draft structure of the Annual Report 2023-2024 – PPD** *The PPD presented the draft structure for the Annual Report 2023-2024.*	**Endorsed with the directives to anchor the narratives of the Annual Report on Mission of the Strategic Anti-Corruption Roadmap and Mission 114.** **The Departments/Divisions to share the input to the PPD by 20 July, 2023.**
7	**Apprise on Religious Organizations and General Reserve system studies – PD** *The PD presented two system studies viz. provisioning and management of General Reserve and Religious Organizations of Bhutan.*	**The System Studies on the General Reserve was endorsed in principle. Besides, directed to include 12.5% of provisioned reserve fund categorized as 'not identified' under the 'Ministry of Finance'. In addition, directed to share the write-up with the Commission.** **Regarding the system study on the Religious Organizations, the Commission directed to:** • **Revisit the system study and engage the Legal Division, if necessary; and** • **Review recommendation related to the tax exemption and registration of the Religious Organizations.** **Further, towards enhancing internal governance/internal control mechanisms of the Religious Organizations, the PD can explore the possibilities of using the approach and engagement framework used for the Civil Society Organizations.**
8	**Apprise on GlobE Network (Global Operational Network of Anti-Corruption Law Enforcement Authorities) – PPD** *In the sidelines of the Country Visit of the Second Cycle Review, the reviewers from the UNODC shared information on the GlobE Network. Established on June 3, 2021, the*	**In view that there is no critical need for the exchange and sharing of information currently, as proposed the Commission directed to defer the idea of joining as the member for now and consider it in future, if necessary.**

	Network has 161 Authorities from 91 Member States who are also Parties to UNCAC. The Network offers a platform for information exchange among the Anti-Corruption Agencies (ACAs). *While the Network will facilitate sharing of information among the ACAs even without Mutual Legal Assistance, there is no critical need for exchange and sharing of information at this point in time. Thus, it was proposed if joining as the member could be deferred and consider it in the future.*	
9	Others: - **Update on IAACA regional conference – PPD** *The International Association of Anti-Corruption Authorities (IAACA) on 18 May, 2023 through an email requested member ACAs to indicate the availability for the Regional Conference and suggest topics of interest. Accordingly, the ACC Bhutan expressed its willingness to attend the Conference online and suggested some topics.* *However, on 26 June 2023, the Secretariat has informed that the plan for the Conference has to be dropped as the response to the proposal is not satisfactory.* - **Reminder on closing emergency doors** *In view that the emergency doors of the ACC Head Office are left open most of the time, there is an imminent risk of security breach. While many security measures are put in place, such carelessness will undo sustained efforts initiated to mitigate impending security threats.*	**Noted** **All staff to be mindful that the emergency doors remain latched/locked from inside to avert potential risk of security breach. In addition, all staff must be reminded that the biometric doors are properly closed behind them since the doors do not auto-shut.**

Commissioner **Commissioner** **Chairperson**

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